

Dear

National Disability Insurance Agency Enterprise Agreement 2020-2023

Version V0.21

Last edited 26.02.2020 **Commencement date** 24.04.2020

Agreement ID AG2020/901

I am reporting my employer, the NDIS/
A for not paying me super into a super
fund of the governments that is law
through the industrial relations
agreement:

Title and length of agreement

- . 1.3. This Agreement shall be known as the National Disability Insurance Agency Enterprise Agreement 2020-2023.

- . 1.4. This Agreement is made under section 172 of the *Fair Work Act 2009* (FWA).

The parties bound are:

Parties bound

1.7. This Agreement covers and binds the Chief Executive Officer (CEO) of the NDIA on behalf of the Commonwealth; and all Australian Public Service (APS) employees of the NDIA:

- a. with the exception of Senior Executive Service (SES) employees
- b. noting that in accordance with section 58 of the FWA, it will cover and apply to transferring employees covered by the Disability Services Enterprise Agreement Victoria 2018-2022 effective from 1 July 2022.

Who is an APS?

Who are Australian public service employees?

The Australian Public Service formally comprises **all Australian Government departments and agencies where staff members are or can be employed under the Public Service Act 1999**. At June 2013, there were 167,257 APS employees, down from 168,580 APS employees in June 2012.

It says I am eligible as a PSA if:

You are eligible if you:

are an Australian citizen at the time of application. have as a minimum an Australian recognised bachelor degree in the last four years and can provide evidence of your qualification prior to commencing.

‘How to join APS’

It says:

A job with us means you can work on what you are passionate about. With such a wide variety of jobs available, you can do almost anything within the public service.

It also has a dedicated NDIA page meaning if you are an employee of the NDIA then you are automatically classified as a PSA

They web link is here:

<https://www.apsjobs.gov.au/s/graduate-portal/departments/national-disability-insurance-agency-MCLDFESMUAZDGNA76DQLYSRLUBQ>

What jobs are considered public servants?

What jobs are considered public servants?

Public servants include **any local, state or federal government employee of a government organization**. Firefighters, police officers, public health officials, librarians, teachers and volunteers for the Peace Corps all fall in the public sector. 13 Jan 2020

According to this definition - I am a public servant

What's the difference between civil servant and public servant?

Civil servants include members of the government, members of various government's department and members of embassies and consulates. Public servants include **firefighters and police officers**, but also volunteers and privates that provide services to the community and to the neediest segments of society.

According to this:

I am a

Federal public service employee

Employment Defined

Employment in the federal public service must be with a department or branch that **forms part of the public service**. It

also includes employment in any of the boards, commissions or agencies that form part of the public service for pension purposes.24 Sept 2021

Additionally it says about the APS website:

The Australian Public Service

The APS has a wide range of opportunities, and offers full time, part time and temporary or non-ongoing roles across a range of locations in Australia and overseas. There are entry level, management and technical positions as well as policy, project administrative and support roles. Apprenticeship, Indigenous career pathways, school leaver and graduate programs are all available The APS also offers generous leave and flexible working conditions, above average superannuation contributions and the opportunity to influence the future of all Australians for the better.

In regards to final entitlements of a role, it is stated:

Complaints about final entitlements

27 August 2021

Final entitlements are the payments you receive when you cease employment. These payments may include:

- your final salary payment including any outstanding payments for overtime and flextime (where your enterprise agreement provides for the cashing out of flex credits on separation)
- the leave you have accrued but not taken
- redundancy payments and payments in lieu of notice.

Your final entitlements are determined by the ***Fair Work Act 2009*** and the **industrial instrument you are employed under**. This will usually be your **agency's enterprise agreement**, or your contract of employment.

The NDIS has

APS Code of Conduct

procedures

Meaning that their
employees are of that
definition

<https://>

www.ndis.gov.au/

about-us/policies/aps-
code-conduct-
procedures

On 7th April 2020, a workplace agreement was signed by Martin Hoffman for Work Safe / an enterprise agreement.

Casual Employee:

an employee who is engaged on an irregular or intermittent basis under section 22(2)(c) of the PS Act

Employee

a person employed by the NDIA under the PS Act, whether full-time or part-time, in an ongoing, non-ongoing or intermittent capacity

PS Act

. *Public Service Act 1999*

What does it say about my eligibility to

be deemed an employee on the NDIS official website?

Workers



The NDIS Quality and Safeguards Commission is an independent government body that will work to improve the quality and safety of NDIS supports and services, and strengthen the skills and knowledge of workers, providers and participants across Australia.

The NDIS Commission is now operating in all states and territories.

Who is a worker?

Under the NDIS Commission, a worker is anyone who is employed or otherwise engaged to provide NDIS supports and services to people with disability. Workers can be paid or unpaid, and can be people who are self-employed, employees, contractors, consultants, and volunteers.

So according to that statutory Government authority, I

am an employee and or a worker.

PSSap is the . Public Sector Superannuation Accumulation Plan - the NDIA's default superannuation fund for new employees who commenced after 1 July 2005

As I am an employee of the NDIA, I should have had a default superannuation fund.

This dis not occur.

The enterprise agreement states that this superannuation is compulsory for me to have as a person actively engaged for years working for the NDIS/A

I was interested to read about The

Governments Supported Wage System (SWS)

the Commonwealth Government system to promote employment for people who cannot work at full award wages because of a disability, as documented in the Supported Wage System Handbook

As a person who has had difficulties in the past and throughout my work and career, I would like this to be re-visited for the term of my employment consistent with legislation.

I was interested to read about eligibility criteria for section B in terms of cessation of work because of a workplace issue, illness, or complexity, or abuse.

Eligibility criteria

- . B.1 You will be covered by this appendix if you are unable to perform the range of duties to the competence level required

within the class for which you are engaged under this Agreement, because of the effects of a disability on the productive capacity and you meet the impairment criteria for receipt of a disability support pension.

- . B.2 The appendix does not apply to any existing employee who has a claim against the employer which is subject to the provisions of workers compensation legislation or any provision of this Agreement relating to the rehabilitation of employees who are injured in the course of their employment.

Supported wage rates

B.3

You will be paid the applicable percentage of the relevant minimum wage according to the following schedule:

10% 10%

On 22/01/2021 I became ill from work because of complex reasons, and I was no longer physically able to attend to see my two year long client, who had extremely high needs.

I took provisions in order to reduce stress and risk with that situation as

well.

I was not available because of a parallel magistrates decision linked to my validation of child sexual abuse, and that I had been unsuccessful in various VOCAT cases which I believe were actually a case of systemic oppression from Government agencies.

I also could not function in the emotional and critical thinking capacity for my role, and be the best support I could be for my important client.

It was only a short while after that whereby I was hospitalised in a

psychiatric unit.

Whilst I was there, I very nearly died by suicide.

The FOI from the hospital states that it was a 'lethal injury', and a 'fatal' attempt.

It is recorded in the clinical notes from the FOI's that I was found unresponsive, having totally bled out with 'no observable pulse'.

If I were not freakishly accidentally discovered and rushed out lifeless in a code black - and revived with a refilling of my bodies blood and basic fluid, and

dramatic oxygen pumps refilling my lungs - I painfully and eventually gained consciousness.

What killed me was not mental illness.

I will prove beyond reasonable doubt that it was the sum of prejudice stigma shame the non validation via a magistrate of my sexual abuse where I was the child victim, and a decades long consistent systemic government oppression that was conscious malicious and a sustained attack.

when I was I would definitively not be

here.

Further to that; I have an acquired brain injury arising from the toxicology of the carbon dioxide in my brain toxicology and the lack of oxygen.

Research shows that it destroys short term memory in the region of the hippocampus.

I struggle even day with my thoughts and my thought processors.

I changed my name to escape the systemic oppression and denial my name had within the Government and I

could not remember what it was.

I can barely organise myself to get a new glasses prescription, or attend any kind of meeting or have the memory and drive to do simple things like get a haircut.

The amount to be paid per year is not less

- . B.4 The salary payable under this table will not be less than the minimum amount determined by the Fair Work Commission (FWC).

It also says

- . B.5 Where your assessed capacity is 10 per cent you must receive a high degree of assistance and support.

In regards to the assessment of capacity:

‘**Assessment of capacity**

- . B.6 For the purposes of establishing the percentage of the relevant minimum wage, your productive capacity will be assessed in accordance with the SWS by an approved assessor, having consulted you and your employer and if you so choose, your representative.
- . B.7 Assessment made under this schedule must be documented in a SWS wage assessment agreement, and retained by the employer as a time and wages record in accordance with the *Social Security Act 1991*.

‘

This needs to be urgently done

On other terms of employment:

Other terms and conditions of employment

B.9 Where an assessment has been made, the applicable percentage will apply to the relevant wage rate only. Employees covered by the provisions of the schedule will be entitled to the same terms and conditions of employment as all other workers covered by this Agreement paid on a pro-rata basis.

the systemic oppression from Government agencies, my non validated child sexual abuse case, the stressors from work of completing a VOCAT assessment and statement for my two-year-long-client-who was a survivor of child rape and incest, which triggered me.

The client was abusing and would call threatening me.

I put in place a new users agreement whereby he was banned from calling or texting - something I had allowed in case of an emergency in the past.

Our collection approach to unpaid super

If your employer doesn't pay the minimum amount of super into the correct fund by the due date, they may have to pay the super guarantee charge (SGC).

We may investigate an employer's super guarantee compliance on our own initiative or in response to an employee enquiry. If we determine that your employer (or former employer) has not complied with their SG obligations for you, or we reasonably suspect this to be the case, we may disclose details of this to you.

From 1 April 2019, the law allows us to disclose an employer's non-compliance to affected employees even if they haven't lodged an enquiry with us.

We prioritise the collection of unpaid SGC debts. We'll work with employers who engage with us to address their debt. For those that don't engage, we'll take [stronger action](#). This can include:

[director penalty notices](#)
[garnishee notices](#).

If you've chosen to report your employer, we'll keep you updated throughout the investigation. If we establish there is an SGC debt, we'll inform you of the recovery actions we're taking.